

## FLOOR AMENDMENT

HOUSE OF REPRESENTATIVES

State of Oklahoma

SPEAKER:

CHAIR:

I move to amend HB3501 \_\_\_\_\_  
Of the printed Bill  
Page \_\_\_\_\_ Section \_\_\_\_\_ Lines \_\_\_\_\_  
Of the Engrossed Bill

By deleting the content of the entire measure, and by inserting in lieu thereof the following language:

**AMEND TITLE TO CONFORM TO AMENDMENTS**

Adopted: \_\_\_\_\_ Amendment submitted by: Collin Duel \_\_\_\_\_

\_\_\_\_\_  
Reading Clerk

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

FLOOR SUBSTITUTE  
FOR

HOUSE BILL NO. 3501

By: Duel

FLOOR SUBSTITUTE

An Act relating to alcoholic beverages; requiring the Alcoholic Beverage Laws Enforcement (ABLE) Commission to issue multiple licenses for manufacturing beverages on the same premises to certain license holders; providing requirements for acquiring multiple licenses; requiring a license holder operating under an alternating proprietorship or premises arrangement to abide by the Oklahoma Alcoholic Beverage Control Act; directing the ABLE Commission to promulgate rules to authorize alternating proprietorship or premises; amending 37A O.S. 2021, Section 6-109, as amended by Section 5, Chapter 90, O.S.L. 2024 (37A O.S. Supp. 2025, Section 6-109), which relates to prohibited acts of certain license holders; providing requirements when conducting sample tastings; providing for codification; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 2-165 of Title 37A, unless there is created a duplication in numbering, reads as follows:

A. The Alcoholic Beverage Laws Enforcement (ABLE) Commission shall issue multiple licenses for manufacturing beverages on the

1 same premises if the applicant is in good standing with the ABLE  
2 Commission and the Oklahoma Tax Commission pursuant to the Oklahoma  
3 Alcoholic Beverage Control Act including, but not limited to, small  
4 brewer license, charitable collaboration brewer license, distiller  
5 license, winemaker license, rectifier license, and small farm winery  
6 license, and manufacturer's license. Nothing in this section shall  
7 be construed to apply to the issuance of distribution or wholesale  
8 licenses.

9 B. Applicants for an additional license must obtain all  
10 necessary federal permits and approvals from the Alcohol and Tobacco  
11 Tax and Trade Bureau (TTB) for an alternating proprietorship or  
12 premises arrangement and the applicant must be in good standing with  
13 the TTB. An applicant shall notify the ABLE Commission of its  
14 intention to operate an alternating proprietorship or premises when  
15 applying for the second and all subsequent licenses for a single  
16 premises.

17 C. Any license holder operating under an alternating  
18 proprietorship or premises arrangement shall abide by the portions  
19 of the Oklahoma Alcoholic Beverage Control Act that are relevant to  
20 the license under which he or she is producing the corresponding  
21 beverage governed by the license.

22 D. The ABLE Commission shall promulgate rules, pursuant to the  
23 Administrative Procedures Act, to authorize alternating  
24 proprietorship or premises arrangements.

1       SECTION 2.       AMENDATORY       37A O.S. 2021, Section 6-109, as  
2 amended by Section 5, Chapter 90, O.S.L. 2024 (37A O.S. Supp. 2025,  
3 Section 6-109), is amended to read as follows:

4       Section 6-109. A. No mixed beverage, beer and wine, bottle  
5 club, caterer, charitable event, public event or special event  
6 licensee or any employee, manager, operator or agent thereof shall:

7       1. Consume or be under the influence of alcoholic beverages  
8 during the hours he or she is on duty. For the purposes of this  
9 section, licensees will be deemed to be on duty from the time the  
10 licensee first comes on duty until the time the licensee goes off  
11 duty at the end of the shift including any break periods permitted  
12 by management. This paragraph shall not apply for purposes of  
13 employee education training; provided, that:

14       a. all tastings are conducted on a licensed premises and  
15       under the direct supervision of the licensee,

16       b. all samples shall be poured by a licensee who is  
17       lawfully permitted to serve alcoholic beverages in  
18       this state,

19       c. all tastings shall be restricted to employees who are  
20       twenty-one (21) years of age or older,

21       d. all participation in tastings for educational purposes  
22       may be required by an employer; however, the choice to  
23       taste or consume alcoholic beverages shall always be  
24       voluntary, and

e. no employee may be required to taste or consume alcohol at tastings as a condition of employment.

An educational tasting of beer may consist of not more than six separate individual beers of not more than two (2) ounces each, served together at one time. No employee may sample more than a total of twelve (12) fluid ounces of beer per day. An educational tasting of wine may consist of not more than six separate individual wines of not more than one (1) ounce each, served together at one time. No employee may sample more than a total of six (6) fluid ounces of wine per day. An educational tasting of spirits shall consist of not more than three separate individual spirits of not more than one-half (0.5) ounce each, served together at one time. No employee may sample more than a total of one and one-half (1.5) fluid ounces of spirits per day. An education tasting of a mixed beverage shall consist of not more than one individual mixed beverage consisting of not more than twelve (12) ounces of beer, six (6) ounces of wine, or one and one-half (1.5) ounces of spirits, combined with an unlimited amount of ingredients that are non-alcoholic in nature, served at one time. No employee may sample more than a total of twelve (12) ounces of beer, six (6) ounces of wine, or one and one-half (1.5) ounces of spirits in a mixed beverage per day. Only one type of alcoholic beverage, beer, wine, spirits, or mixed beverage shall be allowed at any educational training tasting. No combination tasting shall be allowed.

1 Employees who choose to taste an alcoholic beverage but do not wish  
2 to consume the alcoholic beverage shall be allowed to spit the  
3 beverage into a cup for disposal. Employees may participate in  
4 educational tastings before, during, or after regular business hours  
5 unless otherwise prohibited by law. All licensees serving samples  
6 of beer shall ensure that all samples are poured only from original  
7 sealed packaging and any alcoholic beverages remaining in unsealed  
8 packaging used to provide samples, excluding spirits and wine, are  
9 poured out by the end of the day. No more than six bottles of  
10 alcoholic beverages may be unsealed at any given time during a  
11 tasting. All packaging containing samples of wine and spirits shall  
12 be clearly marked as a sample and any unused portions of the sample  
13 of wine or spirits shall be resealed and retained by the wine and  
14 spirits wholesaler for use at the next tasting authorized in this  
15 paragraph. Wine and spirits wholesaler employees may transport any  
16 resealed samples of wine and spirits in their vehicles. Beer, wine,  
17 and spirits samples shall not be considered withdrawn from the  
18 inventory of the beer distributor or wine and spirits wholesaler for  
19 purposes of the collection of the excise tax on beer, wine, and  
20 spirits. Straw testing during operating hours shall be permitted.  
21 Tastings offered to licensees by wine and spirits wholesalers and  
22 beer distributors shall not be deemed discrimination or an  
23 inducement under Section 3-123 of this title. This paragraph shall  
24

1 not apply to any person who works on the premises as an entertainer  
2 only;

3 2. Permit or tolerate any conduct or language which is intended  
4 to threaten another with physical harm or any fighting or offensive  
5 physical contact, in or upon the licensed premises or areas just  
6 outside the licensed premises which are controlled by the licensee;

7 3. Permit empty or discarded alcoholic beverage containers to  
8 be in public view outside the licensed premises. All empty or  
9 discarded containers shall be disposed of in accordance with ABLE  
10 Commission rules and regulations;

11 4. Permit any illegal gambling activity, violations of the  
12 state narcotic and dangerous drug laws, prostitution activity or any  
13 other criminal conduct to occur on the licensed premises;

14 5. Refuse or fail to promptly open a door to the licensed  
15 premises upon request of an employee of the ABLE Commission or any  
16 other peace officer to enter the premises when the licensee or  
17 employee knows or should know that such request is made by an  
18 employee of the ABLE Commission or a peace officer. This provision  
19 shall not be construed to deny employees of the ABLE Commission or  
20 peace officers access at any time to any licensed premises;

21 6. Permit a sealed or unsealed container of alcoholic beverage  
22 to be removed from the licensed premises. Provided, that  
23 restaurants, hotels and motels may permit the removal of closed  
24 original wine containers the contents of which have been partially

1 consumed and bottle clubs may permit the removal by a club member of  
2 closed original containers of alcoholic beverages belonging to  
3 members. The provisions of this paragraph shall not be construed to  
4 prohibit or restrict:

5           a. hotels or motels who are holders of mixed beverage or  
6           on-premises beer and wine licenses from allowing  
7           alcoholic beverages to be served away from the bar  
8           area anywhere on the licensed premises,

9           b. licensees, who are lawfully operating in a facility or  
10          on property owned or operated by any agency, political  
11          subdivision or public trust of this state, from  
12          allowing persons to transport alcoholic beverages from  
13          one licensed premises to another within the same  
14          building or property, provided that the building or  
15          property or a part thereof is defined as a common  
16          drinking area for consumption of alcohol by resolution  
17          of the governing body of the agency, political  
18          subdivision or public trust of this state,

19          c. licensees, who are licensed to operate in a facility  
20          or on property owned or operated by any agency,  
21          political subdivision or public trust of this state,  
22          from allowing other licensees to operate on their  
23          licensed premises for events that are temporary in  
24          nature. In the event that multiple licensees are



operating in a facility or on property owned or operated by any agency, political subdivision or public trust of this state, each licensee shall be responsible for violations occurring in their area designated to be their temporary licensed premises, or

d. licensees, who are lawfully operating in a facility or property intended for multiple licensed premises within the facility and which also contains a common use area, from allowing persons to transport alcoholic beverages within the entire premises, which shall be designated by the ABLE Commission as a common drinking area for the consumption of alcoholic beverages.

Provided further, the property owner and all licensees licensed within the facility or property desiring the entire premises be designated a common drinking area shall notify the ABLE Commission in writing of their consent prior to such area being designated a common drinking area; or

7. Destroy, damage, alter, remove or conceal potential evidence, or attempt to do so, or refuse to surrender evidence when lawfully requested to do so by an inspector, agent or any other peace officer or incite another person to do any of the above.

B. All sample tastings conducted under this section shall:

1       1. Be conducted under the direct supervision of the licensee  
2 authorized to host the tasting;

3       2. Be poured by any Alcoholic Beverage Laws Enforcement (ABLE)  
4 Commission licensee lawfully permitted to serve alcoholic beverages,  
5 provided no wine or spirits wholesaler, beer distributor, or  
6 employee of a wine or spirits wholesaler or beer distributor shall  
7 be allowed to pour samples for tastings;

8       3. Use alcoholic beverages purchased by the licensee authorized  
9 to host the tastings from a licensed wine and spirits wholesaler,  
10 beer distributor, self-distributor, small brewer, or self-  
11 distributing winery authorized to sell the same, and the licensee  
12 shall pay the applicable taxes on the alcoholic beverages purchased;  
13 provided, the licensee may only provide samples of alcoholic  
14 beverages that its license is authorized to sell;

15       4. Be restricted to persons twenty-one (21) years of age or  
16 older;

17       5. Shall consist of not more than twelve (12) ounces of beer,  
18 six (6) ounces of wine, or one and one-half (1.5) ounces of spirits  
19 per consumer per day; and

20       6. Be consumed on the licensed premises of the licensee  
21 authorized to host the tastings or at a location other than the  
22 licensed premises, provided no samples served on the licensed  
23 premises shall be permitted to be removed from the licensed  
24 premises.

1        C. All licensees authorized to serve samples pursuant to this  
2 section shall ensure that:

3        1. All samples are poured only from original sealed packaging;

4        2. Any alcoholic beverages remaining in unsealed packaging used  
5 to provide samples, excluding spirits, are poured out by the end of  
6 the day; and

7        3. No person shall remove any samples from the licensed  
8 premises or location where the tasting has occurred.

9        SECTION 3. This act shall become effective November 1, 2026.

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